

		property before it determines whether interests of the parties must be determined before the Court determines whether the provisions of the Partition of Real Property Act apply to this action. As such, the motion must be denied (without prejudice for plaintiff to refile at an appropriate later time in the litigation). Plaintiff to give notice.
7	Phillips vs. Newport-Mesa School District 2025-01474929	Motions to Compel Production and Response to Requests for Admissions Plaintiff Trenae Phillips’ motion for order compelling defendant Newport-Mesa School District to provide further responses to requests for production, set one (“RFPs”) is granted in part and denied in part, as set forth below. Plaintiff’s motion to compel defendant Corey Stone to provide further responses to requests for admission, set one (“RFAs”) is granted. Plaintiff is awarded sanctions of \$960 against Defendant Stone. Facts This is an action for injuries resulting from a car accident. Plaintiff alleges that Defendant Corey Stone, while in the course and scope of his employment with Defendant Newport-Mesa School District (“NMSD”) , caused the accident by driving too fast and making an unsafe lane change. [Complaint (ROA #2), ¶¶ MV-2f, GN-1.] On 5/13/25, Plaintiff served the RFPs on NMSD and the RFAs on Stone; Defendants each served responses by email on 7/7/25. [Nunez Decls. (ROA ## 43, 42), ¶¶ 3, 4 and Exs. A and B.] Counsel for the parties communicated back and forth numerous times as part of their meet and confer efforts. [<i>Id.</i>, ¶¶ 5-15 and Exs. C-M.] This included a number of extensions of Plaintiff’s deadline for filing motions to compel from what would have been an 8/25/25 deadline. [<i>See Id.</i>, Exs. D, G, H, L.] Twice these were in terms of a “two week” extension. [<i>Id.</i>, Exs. D, G.] Once it was a date certain [Ex. H]; and the last extension as until two weeks after the promised supplemental responses were served. [<i>Id.</i>, Exs. L and M.] Supplemental responses were not served for the RFPs and RFAs, however, and Plaintiff now moves to compel further responses. [<i>Id.</i>, ¶¶ 15-17.] The motions were filed on 12/19/25. Timeliness of the Motions

For both RFPs and RFAs, the Discovery Act provides that the propounding party may bring a motion to compel further responses within 45 days of service of the response – extended two court days for service by email. Code Civ. Proc. §§ 2031.310(c), 2033.290(c), 2016.050, 1013, 1010.6(a)(3)(B).

These deadlines may be extended to a “specific later date to which the demanding party and the responding party have agreed in writing.” Code Civ. Proc. §§ 2031.310(c), 2033.290(c).

Defendants argue that Plaintiff’s motions are untimely because they were not filed by 9/29/25 – the last “certain” date agreed to by the parties. [Nunez Decl., Ex. H.] They also appear to argue that the last extension of two weeks after the promised supplemental responses were to be served should be interpreted as simply a two week extension, making the deadline 10/13/25 at best.

But the last extension clearly was not simply for two weeks. It was for two weeks after Defendants served the supplemental responses that they counsel assured Plaintiff’s counsel they were going to serve.

Defendants’ contention that this form of extension does not comply with the terms of sections 2031.210(c) and 2022.290(c) is sound, but their conclusion that they get to take advantage of that is not. Defendants agreed to that form of extension and lulled Plaintiff’s into reliance on that by their promise to serve supplemental responses – which Defendants ultimately did not do.

Under the doctrine of equitable estoppel, assurances of cooperation and delaying conduct may estop a party from relying on a discovery motion cutoff date. [*Sears, Roebuck & Co. v. National Union Fire Ins. Co. of Pittsburg* \(2005\) 131 Cal. App. 4th 1342, 1351.](#) With regard to estoppel, “[t]he abuse of discretion standard applies ..., and, under the substantial evidence rules, [a reviewing court must] resolve all evidentiary conflicts in [the prevailing party’s] favor.” (*Ibid.*) See also *Pelton-Shepard industries, Inc. v. Delta Packaging Products, Inc.* (2008) 165 Cal. App. 4th 1568, 1585 (recognizing applicability of equitable estoppel to discovery motion deadlines but finding inapplicable because party’s assurances and delaying conduct not ultimately the reason motion was too late).

Defendants are equitably estopped from asserting that the motion to compel deadline extension that they agreed to is insufficient so as to enable them to rely on the prior deadline.

Motion to Compel Further Responses to RFPs

Code Civ. Proc. section 2031.310 provides, in relevant part, that “any party may obtain discovery” by “inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action.” Code Civ. Proc., § 2031.010(a). Section 2031.220 requires a party responding to an inspection demand to respond with (1) a statement that it will comply, (2) a representation that it does not have the ability to comply, or (3) an objection.

If the party responds with a statement of compliance, it must specify whether production “will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” Code Civ. Proc., § 2031.220.

If the party responds with a representation that it does not have the ability to comply, it “shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand.” Additionally, it “shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” Code Civ. Proc., § 2031.230.

Finally,

(a) If only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.

(b) If the responding party objects to the demand for inspection, copying, testing, or sampling of an item or category of item, the response shall do both of the following:

(1) Identify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.

(2) Set forth clearly the extent of, and the specific ground for, the objection. If an objection is based on a claim of privilege, the particular privilege invoked shall be stated. If an objection is based on a claim that the information sought is protected work product under

Chapter 4 (commencing with Section 2018.010), that claim shall be expressly asserted.

(c)(1) If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.

Code Civ. Proc. § 2031.240.

On receipt of the response, the demanding party may move to compel a further response if any of the following apply: (1) a statement of compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete or evasive; (3) an objection is without merit or too general. Code Civ. Proc., § 2031.310(a).

Where there has been a response to RFPs that the propounding party finds inadequate, then the Code provides for a motion and order compelling production upon a showing of good cause, prior meeting and conferring, and the filing of a separate statement. Code Civ. Proc. § 2031.310(b)(1) and (2); CRC 3.1345; Cal. Prac. Guide, Civil Procedure before Trial §8:1494.1.

Plaintiff filed a separate statement with her motion. [ROA #39.] Plaintiff has also shown prior meet and confer attempts. Finally, Plaintiff also shows good cause both generally and – unless and to the extent noted below – for each RFP in issue. [See Nunez Decl., ¶ 17 and Separate Statement.]

Nos. 1-7, 9, 14, 15, 26, 27, 29

In response to these RFPs, Defendant NMSD asserted objections but offered production. It is unclear whether documents are being withhold on the basis of any of the objections are privileged asserted. In short, the responses do not comply with Code of Civil Procedure section 2031.220 and, probably, section 2031.240.

The motion to compel further responses is granted as to these RFPs insofar as compliance with sections 2031.220 and 2031.240.

Nos. 16-19, 28

For these RFPs, after asserting objections Defendant NMSD states that it is not in possession of responsive documents. Such response is not complete, however, as it does not “specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party.” Code Civ. Proc. §2031.230.

The motion to compel further responses is granted as to these RFPs insofar as compliance with section 2031.230.

Nos. 10, 12-13, 20, 32, 34, 38, 39-42, 46, 47

In response to these RFPs, Defendant NMSD asserted only objections.

RFP nos. 10, 12, 13, 20, 32, 41, and 42 seek documents protected by an individual's rights to privacy – whether medical records, employment records, certain cell phone records, or driving records. *County of Los Angeles v. Superior Court* (2015) 242 Cal.App.4th 475, 486–487; *Saunders v. Superior Court* (2017) 12 Cal.App.5th Supp. 1.

This requires a higher showing of relevance than Plaintiff had made.

The party seeking discovery after a valid privacy objection has been made must show a particularized need for the information sought. The court must be convinced that the information is directly relevant to a cause of action or defense ... i.e., that it is essential to determining the truth of the matters in dispute. *Britt, supra*, 20 Cal.3d at 859–862; *Harris v. Superior Court* (1992) 3 Cal.4th 661, 665; Rutter, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 8C-5 at 8:320. The court must carefully balance the requesting party's need for the information with opposing party's right of privacy when determining whether the discovery should be permitted. *John B. v. Superior Court* (2006) 38 Cal.4th 1177, 1199; *Harris, supra*, 3 Cal.App.4th at 665. Additionally, discovery will not be ordered if the information sought is available from other sources or through less intrusive means. *Allen v. Superior Court* (1984) 151 CA3d 447, 449; *Britt, supra*, 20 Cal.3d at 856 (discovery “cannot be pursued by means that broadly stifle fundamental personal liberties when the end can be more narrowly achieved”); Rutter, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 8C-5 at 8:321.

While a party need not always show a “compelling need” for the discovery, “when a discovery request seeks information implicating the constitutional right of privacy, to order discovery simply upon a showing that the Code of Civil Procedure section 2017.010 test for relevance has been met is an abuse of discretion.” *Williams v. Superior Court* (2017) 3 Cal.5th 531, 556.

Such discovery must be “directly relevant” and it is not enough if the discovery might lead to admissible evidence. *Board of Trustees v. Superior Court* (1981) 119 Cal. App. 3d 516, 526 disapproved of on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531.

Then, the court balances whether the invasion of the privacy interest is justified by a competing interest. *Hill v. National Collegiate Athletic Ass'n* (1994) 7 Cal.4th 1, 38.

In the absence of the required showing by Plaintiff, the motion is denied as to RFPs nos. 10, 12, 13, 20, 32, 41, and 42.

For RFP nos. 34, 38, 39, 40, 46, and 47, Plaintiff requests all documents that “relate to” a given topic. Such a request is overbroad. Just about anything can relate to a given topic, depending on viewpoint. This is not just an overbreadth issue but can be a “vague and ambiguous” issue as well because it is hard to know where to draw the line on what “relates” to an issue. While the core of a request may be directed at relevant information, given these issues the motion is denied as to RFP nos. 34, 38, 39, 40, 46, and 47.

Motion to Compel Further Responses to RFAs

(a) Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits.

(b) Each answer shall:

(1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party.

(2) Deny so much of the matter involved in the request as is untrue.

(3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.

Code Civ. Proc. § 2033.220.

After receiving responses to requests for admission that a party finds evasive or incomplete a party may move for further responses. Code Civ. Proc. §2033.290(a). The motion must be accompanied by a declaration showing a good faith attempt to meet and confer and a separate statement. Code Civ. Proc. §2033.290(b). Plaintiff has met these requirements.

Plaintiff seeks further responses to the following RFAs nos. 20-22.

		Defendant’s boilerplate objections to these three RFAs are without merit. The information sought is not a legal conclusion or an expert opinion. It is a fact: either Defendant has been in a car accident before (or found at fault for a car accident or gotten a ticket) or he has not. “Assumes facts not in evidence” is not an objection to discovery.. Nor is “unduly prejudicial,” the argument made in Defendant’s opposition. Defendant argues the information is not relevant because Plaintiff has not prayed for punitive damages or “asserted a negligent entrustment or hiring claim against the District that would make Stone’s prior driving record relevant.” But Plaintiff may use discovery to learn the facts necessary to allege a basis for punitive damages. “Codified as subdivision (b) of section 1101 (§ 1101(b)), the rule has long been that evidence of uncharged misconduct <i>is</i> admissible where relevant to prove “some fact (such as motive, opportunity, intent, preparation, plan, <i>knowledge</i>, identity, absence of mistake or accident ...) other than [a defendant's] disposition to commit such an act.” (§ 1101(b), <i>italics added.</i>)” <i>People v. Ortiz</i> (2003) 109 Cal.App.4th 104, 111. And Plaintiff <i>has</i> pleaded negligent entrustment, which would make Defendant’s driving record, and NMSD’s knowledge of it (or lack thereof) relevant. The motion to compel further responses to these RFAs is therefore granted. Plaintiff to give notice.
8	Pooph, Inc. vs. ONM Environmental, Inc. 2025-01511009	1. Motion for Order to Stay Proceedings 2. Case Management Conference Continued to 06/01/2026
9	Popal vs. Sajjadian 2024-01384261	Motion to Set Aside/Vacate Judgment The Court grants Plaintiff Shahla Popal’s Motion to vacate the 1/23/26 Judgment and 12/23/25 summary judgment Order on Plaintiff’s Complaint against Defendants Ali Sajjadian, M.D., and Sajjadian Medical Corporation.